

**Risk neutral**

| <b>Fee rule</b>       | <b>Meritorious-P<br/>shortfall</b> | <b>Nonliable-D<br/>burden</b> | <b>Liabile-D<br/>excess burden</b> | <b>Gross outcome<br/>error</b> | <b>Total<br/>expenditures</b> |
|-----------------------|------------------------------------|-------------------------------|------------------------------------|--------------------------------|-------------------------------|
| American              | 0.239                              | 0.172                         | 0.022                              | 0.192                          | 0.350                         |
| Trial Fee-Shifting    | 0.239                              | 0.129                         | 0.033                              | 0.193                          | 0.287                         |
| Complete Fee-Shifting | 0.261                              | 0.119                         | 0.123                              | 0.213                          | 0.375                         |